

**FIRST ENDORSEMENT**

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, October 4, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27313 against Sergeant Eric Samuels, Tax Registry No. 923106. This case was conferenced on September 26, 2024, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince, who approved the negotiated penalty of a Command Discipline Schedule A and one (1) day vacation forfeiture after Sergeant Eric Samuels accepted the findings of substantiation of the allegations contained in the Charges and Specifications dated November 21, 2022. Charges and Specifications are dismissed for plea purposes.

*Andre Applewhite*

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Andre Applewhite  
Chief Prosecutor  
New York City Civilian Complaint Review Board



**DISPOSITION OF CHARGES**  
PD 468-142(Rev. 8-89)-2

CASE NO.  
2022-27313

BOOK & PAGE NO.  
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PERSONNEL ORDER NO.

|                          |                            |                      |                              |                            |
|--------------------------|----------------------------|----------------------|------------------------------|----------------------------|
| RANK/TITLE<br>SDS        | SURNAME,<br>SAMUELS        | FIRST<br>ERIC        | M.I.<br>P                    | COMMAND<br>WARRANT SECTION |
| SHIELD NO.<br>1464       | TAX REGISTRY NO.<br>923106 | SOCIAL SECURITY NO.  | DATE APPOINTED<br>08/31/1998 |                            |
| RANK/NAME OF COMPLAINANT |                            |                      |                              | COMMAND                    |
| DATE OF CHARGES          |                            | DATE TRIAL COMMENCED |                              | DATE TRIAL CONCLUDED       |

TRIAL COMMISSIONER

| SPECIFICATION                                                                                                                                                                                                                                                                                                                                                 | DISPOSITION | RECOMMENDED PENALTY<br>PLEA [X] TRIAL [ ]                                                                                                                                                                                                                                                                                                                                                   |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1 . Sergeant Eric Samuels, on or about June 16, 2021, at approximately 1400, while assigned to WARRSEC and on duty, in the vicinity of § 87(2)(b) Kings County, was discourteous, in that he spoke discourteously to § 87(2)(b) without police necessity, by stating in sum and substance "Yes I am, baby" "Here's my card, baby" "Hot pursuit, babe."        | DISMISSED   | A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 1.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated. |
| 2 . Sergeant Eric Samuels, on or about June 16, 2021, at approximately 1400, while assigned to WARRSEC and on duty, in the vicinity of § 87(2)(b) Kings County, used offensive language, in that he made remarks to § 87(2)(b) based upon the gender of § 87(2)(b) without police necessity, by stating in sum and substance, "Its' over. No problem, sugar." | DISMISSED   |                                                                                                                                                                                                                                                                                                                                                                                             |

*DC [Signature]*  
FIRST DEPUTY COMMISSIONER

*10/30/24*  
DATE

**POLICE COMMISSIONER'S APPROVAL**

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)

*[Signature]*  
POLICE COMMISSIONER

*11/8/24*  
DATE

**THIRD ENDORSEMENT**

First Deputy Commissioner to Police Commissioner, October 30, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-27313 (CCRB Case #202103703) against Sergeant Eric Samuels, Tax #923106, with the recommendation that the Charges and Specifications against Sergeant Samuels be dismissed and that Sergeant Samuels receive a Schedule "A" Command Discipline and forfeit one (1) vacation days. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

TIK/pk



Tania I. Kinsella  
**FIRST DEPUTY COMMISSIONER**

**APPROVED**

NOV 08 2024



THOMAS G. DONLON  
POLICE COMMISSIONER